

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 21-021
Amendments to Title 10, Chapter 2, Sections 10-206
and 10-208 of the Chickasaw Nation Code
(Budgeting and Appropriations)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Tribal Legislature is required to hold annual public hearings regarding the Consolidated Tribal Budget, and

WHEREAS, Title 10, Chapter 2, Sections 10-206 and 10-208 of the Chickasaw Nation Code provide for citizen input in said public hearings.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 10, Chapter 2, Sections 10-206 and 10-208 of the Chickasaw Nation Code (additions and case changes are shown in red, deletions are stricken through):

"SECTION 10-206 **PUBLIC HEARINGS.**

C. All such hearings shall be conducted at a location(s) designated by the Finance Committee Chairman. Notice of the date, time and place of the hearing together with the proposed budget summary, shall be published in the *Chickasaw Times* and newspapers of general circulation in the areas where such hearings are to be held not less than ten (10) days before the date of any such hearing.

D. The Committee shall make available copies of the proposed budget for review at the Legislative Office. A summary of the Consolidated Tribal Budget will be available at each public hearing.

E. At the public hearings on the budget, any Chickasaw citizen may present to the committee comments, questions and recommendations or information on any part of the proposed budget; ~~provided that he has complied with all applicable parts of this Chapter.~~ The Finance Committee Chairman or other member of the Finance Committee as designated by the Committee Chairman shall provide a brief explanation of significant schedules and/or line items.

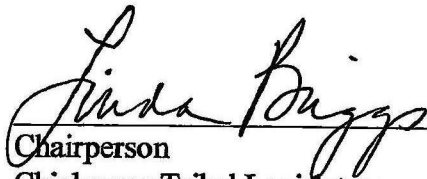
SECTION 10-208

TESTIMONY AT HEARINGS.

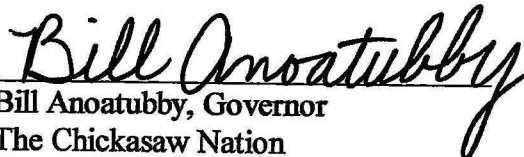
A. Any Chickasaw citizen may address the Finance Committee at any hearing conducted in accordance with this Chapter. A person interested in addressing the Finance Committee shall only be allowed time on the agenda if he has notified the Chairman of his desire to speak and provides an agenda within five (5) days of the date and time of the scheduled hearing at which he wishes to speak. Notification of a desire to speak shall be made in writing. The Chairman shall have the right to limit the number of persons and/or the length of time of those speaking before the Committee if more than one speaker wishes to address the same specific part or parts of the budget. Comments shall be limited to one appearance not exceeding ten (10) minutes per speaker.

B. Written comments may be provided by any Chickasaw citizen without that citizen also having to orally address the Finance Committee. In the case of a citizen providing only written comments, a copy of the comments shall be presented to the Finance Committee Chairman by the person offering comments prior to the hearing's commencement."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 21, 2004, by a vote of 12 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur:  Date: MAY 21 2004
Bill Anoatubby, Governor
The Chickasaw Nation

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Explanation: This resolution reduces the restrictions placed on Chickasaw citizens in receiving information contained in the Consolidated Tribal Budget and presenting comments, questions and recommendations or information on any part of the proposed budget during public hearings regarding the Consolidated Tribal Budget.

Requested By: Wilson Seawright, Legislator

Presented By: D. Scott Colbert, Chairman
Finance Committee